

Section 3.

SCHEDULE.

CUSTOMS CONSOLIDATION ACT, 1876, SECTIONS 30 AND 31, AS MODIFIED.

30. If any dispute arises as to the proper amount payable in respect of any goods the importer or consignee or his agent shall deposit in the hands of the collector of customs at the port of entry the amount demanded by such collector, which shall be deemed and taken as the proper sum payable under this Act unless an application is made for a reference to a referee appointed by the Treasury within three months after such deposit to ascertain what sum is payable in respect of such goods, and on payment of such deposit and on the passing of a proper entry for such goods by the importer, consignee, or agent, the collector shall allow the delivery thereof.

31. In case no such application for a reference is made, such deposit shall be applied in the same manner as if it had originally been paid and received as a payment due under this Act in respect of such goods, and in the case of such application if it shall be determined that the sum so deposited was not the proper sum, but that a less sum was payable, the difference between the deposit and the sum found to be due shall be returned to such importer with interest at the rate of five per cent. per annum for the period during which the sum so paid or returned was deposited, and shall be accepted by such depositor in satisfaction of all claims in respect of the importation of such goods and of all or any damages or expenses incident thereto.

CHAPTER 6.

An Act to curtail the duration of and amend the Coal Mines (Emergency) Act, 1920, and for purposes connected therewith.

[24th March 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords

Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Coal Mines (Emergency) Act, 1920, as amended by any subsequent enactment, shall, so far as it is limited in duration, continue in force until the thirty-first day of March, nineteen hundred and twenty-one, and no longer, and the expression “the period of the operation of this Act” wherever it occurs in the said Act shall be construed accordingly.

Curtailment
of duration
and amend-
ment of Act.
10 & 11
Geo. 5. c. 4.

(2) For the purpose of the provisions of the said Act relating to the pooling of profits, the period of the operation of the Act shall be divided into two periods, the one ending on the thirty-first day of December, nineteen hundred and twenty, and the other commencing on the first day of January, nineteen hundred and twenty-one, and the said provisions shall, in relation to each pooling period, have effect as if for references therein to the period of the operation of the Act there were substituted references to the pooling period in question.

(3) If, in either of the said pooling periods, the amount of the aggregate profits of all the undertakings, after such deduction or addition as is mentioned in subsection (2) of section one of the said Act, exceeds the aggregate of the total standards of all the undertakings, no part of the profits in excess of such aggregate shall be distributable amongst the several undertakings; and, accordingly, proviso (i) of subsection (1) of section one of the said Act shall have effect as if the words “plus one-tenth part of such excess” were omitted therefrom.

(4) In relation to the second pooling period, coal levy and coal award shall be calculated with reference to nine-tenths of the standard instead of with reference to the standard as if in paragraph (a) of subsection (1) of section two of the said Act for the words “the standard” wherever they occur in that paragraph there were substituted the words “nine-tenths of the standard.”

(5) Paragraphs 2, 3, and 5 of the First Schedule to the Coal Mines (Emergency) Act, 1920, and as from the first day of April, nineteen hundred and twenty-one,

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Geo. 5. c. 50.

section three of the Mining Industry Act, 1920, shall be repealed.

Short title
and citation.

2. This Act may be cited as the Coal Mines (Decontrol) Act, 1921, and the Coal Mines (Emergency) Act, 1920, and this Act may be cited together as the Coal Mines (Emergency) Acts, 1920 and 1921.

CHAPTER 7.

An Act to make provision with respect to the taking of evidence before and the procedure and powers of certain Tribunals of Inquiry.

[24th March 1921.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Powers with respect to the taking of evidence, &c., before certain tribunals of inquiry.

1.—(1) Where it has been resolved (whether before or after the commencement of this Act) by both Houses of Parliament that it is expedient that a tribunal be established for inquiring into a definite matter described in the Resolution as of urgent public importance, and in pursuance of the Resolution a tribunal is appointed for the purpose either by His Majesty or a Secretary of State, the instrument by which the tribunal is appointed or any instrument supplemental thereto may provide that this Act shall apply, and in such case the tribunal shall have all such powers, rights, and privileges as are vested in the High Court, or in Scotland the Court of Session, or a judge of either such court, on the occasion of an action in respect of the following matters :—

- (a) The enforcing the attendance of witnesses and examining them on oath, affirmation, or otherwise ;
- (b) The compelling the production of documents ;
- (c) Subject to rules of court, the issuing of a commission or request to examine witnesses abroad ;